Wisconsin Department of Safety and Professional Services
Division of Industry Services
4822 Madison Yards Way
Madison, WI 53705

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Tony Evers, Governor
Dan Hereth, Secretary

5/29/2026

WERNER BRISSKE
PARTNERS IN DESIGN ARCHITECTS
2610 LAKE COOK ROAD, SUITE 280
RIVERWOODS, ILLINOIS 60015

Identification Numbers
Plan Review No.: CB-052600583-PRB
Application No.: DIS-032611817
Site ID No.: SIT-157425
Please refer to all identification numbers in each correspondence with the Department.

CONDITIONAL APPROVAL

PLAN APPROVAL EXPIRES: 05/29/2028
CODE APPLIES: 03/24/2026

MUNICIPALITY:
VILLAGE OF PLEASANT PRAIRIE
KENOSHA COUNTY

SITE:
ZILBER LAKEVIEW 3
108TH STREET,
PLEASANT PRAIRIE, WI

FOR:
108TH STREET, PLEASANT PRAIRIE, WI

Building Name: Zilber Lakeview 3
Object Type: Building SHELL
Major Occupancy: F-1 - Factory Moderate-Hazard
Class of Construction: IIB - Metal Frame Unprotected Construction
Building Review Type: New
Plan Type: Full/Complete Building
Total Floor Area in Sq Ft: 152,334
Sprinklered Type: NFPA 13
Occupancy: F-1 - Factory Moderate-Hazard;S-1 - Storage Moderate-Hazard
Allowable Area Determined By: Non-separated occupancies
Structural Components Included in Review: None

SITE REQUIREMENTS

- Contact both the State Inspector and the local municipality PRIOR to the start of construction.
- A full size copy of the approved plans, specifications and this letter shall be on-site during construction and open to inspection by authorized representatives of the Department, which may include local inspectors. If plan index sheets were submitted in lieu of additional full plan sets, a copy of this approval letter and index sheet shall be attached to plans that correspond with the copy on file with the Department. If these plans were submitted in an electronic form, the designer is responsible to download, print, and bind the full size set of plans along with our approval letter. A Department electronic stamp and signature shall be on the plans which are used at the job site for construction.

The following conditions shall be met during construction or installation and prior to occupancy or use:

SUBMIT:

- SPS 361.30(3) - This approval does not include heating, ventilating or air conditioning. The owner should be reminded that HVAC plans, calculations, and appropriate fees are required to be submitted for review and approval prior to installation in the

field. The HVAC plans shall be submitted on the DSPS website. Building Designer should coordinate with HVAC design to avoid problems with clearance to combustibles, dampers etc. The submitted HVAC plans and calculations shall match the approved building plans. Building Designer is requested to provide a complete set of plans, Energy Calculations and the Building plan review Transaction I.D. number to the HVAC Designer to help coordinate review. Note as per SPS 302.10 installation of HVAC without approved plans could result in double plan review fees.

- SPS 361.30(3) - Submit, prior to installation, one set of properly signed and sealed precast plans, calculations substantiating the design, and associated pertinent information including this transaction number or CB number as a previous transaction. A component plan submittal may be made on the DSPS website. Note as per SPS 302.31(1)(d)4. the fee for a structural component submitted after installation shall be an additional $250 and a $100 submittal fee.
- SPS 361.30(3) - **This approval is for the SHELL building only.** Interior improvement plans shall be submitted for review and approval as building alterations prior to construction. Note that initial interior improvement alterations are required to comply with the building code (IBC, IMC, IECC, et al) in place at the time of their construction. Subsequent interior improvements may make use of the International Existing Building Code. Please forward copies of this approval information to the developers and designers of the tenant space(s) so that they are aware of any conditions of approval and properly inform us of the previous applicable transaction number when submitting tenant in-fill plans.
- SPS 361.30(3) - If this building will include 16 or more plumbing fixtures, plumbing plans must be submitted and approved prior to installation. Review Tables SPS 382.20-1 & 2 for specifics on plumbing plan submittal. You may contact any general plumbing plan reviewer at: 1-608-267-9421 or DspsSbPlbgTech@wi.gov
- SPS 361.30(3) - Submit, prior to installation, fire sprinkler plans, calculations substantiating the design, and associated pertinent information including this transaction number or CB number as a previous transaction. A fire sprinkler plan submittal may be made on the DSPS website. Note that per SPS 361.30(4), the submission and approval of fire sprinkler system plans is not required for a project involving 20 or fewer sprinkler heads located within an existing fire sprinkler system.
- SPS 361.30(3) - Submit, prior to installation, one set of properly signed and sealed structural steel calculations substantiating the design, and associated pertinent information including this transaction number or CB number as a previous transaction. A structural steel submittal may be made on the DSPS website. Note as per SPS 302.31(1)(d)4. the fee for a structural component submitted after installation shall be an additional $250 plus a $100 submittal fee.

KEY ITEM(S):

- ****SPS 361.05 - The commercial building plan, and/or the related building component for this submittal have been reviewed using the 2021 International Code Council (ICC) Suite of Codes and related Wisconsin amendments. You may view the ICC Codes at https://codes.iccsafe.org. Click on "I-Codes", then to the right of that entry, click on "2021 I-codes" to view the associated I-codes for that year. Information on the Wisconsin amendments as contained in SPS Chapters 361-366 is available at https://dsps.wi.gov/Pages/RulesStatutes/TradesProgram.aspx Click on “Commercial Building Code”, find the appropriate SPS Chapter; then click on the first red/white pdf icon button which is located just to the right of the "Help" statement in the upper right of the screen to get a standardized administrative code layout for printing purposes.
- SPS 361.31 - These plans were conditionally approved electronically. The designer is responsible to download the plans, print out complete sets and permanently bind each set of the conditionally approved electronic plans, along with a complete bound set of specifications, as submitted to the Dept., for reference in the field. Plans for field reference shall be the same size and scale as originally submitted to the Dept. per SPS 361.31(2)(a), and per SPS 361.31(2)(d) shall be clear and legible. A complete bound conditionally approved set of plans and set of specifications shall be made available to a Dept. representative on-site upon request. There shall be an electronic stamp and signature on the index page of the conditionally approved plans by the Dept. representative that conditionally approved the plans, as well as the professional of the project if the building is over 50,000 cubic ft. Additionally, a copy of the conditional approval letter issued by the Dept. shall be permanently attached to each of the conditionally approved plan sets.

ALSO ADDRESS:

- IECC C401.2/SPS 363.0401 - The building envelope calculations submitted for review were based on ASHRAE 90.1-2019 as amended by SPS 363.0401. The designer and owner are reminded that the HVAC system, service water system and lighting system shall also be based on ASHRAE 90.1-2019 as required by IECC C401.2 & SPS 363.0401. Additionally, the HVAC control system shall be commissioned as required by ASHRAE 90.1 section 6.9.2 based on Appendix E unless exempted. Kitchen hood performance testing shall be per ASHRAE 90.1 section 6.5.7.2. Lighting control devices and control systems shall be provided functional testing per ASHRAE 90.1 section 9.9. The individual responsible for functional testing shall not be directly involved in either the design or construction of the project and shall provide documentation certifying that the installed lighting controls meet or exceed all documented performance criteria.
  The designer shall be responsible to ensure all applicable actions related to the required commissioning are performed as required for the main building AND all future tenant buildouts, unless an exception is met, with results made available to Department representatives upon request.

- IECC C407/SPS 363.0407 - When demonstrating building envelope compliance using COMcheck, the data used for computational purposes must be shown as a detail on the plans, be part of the building specifications, or included as a product cut sheet. ***COMcheck report includes incorrect input for overhead door area entry, not matching plans provided. Provide revised report to inspector with overhead door area matching plans which show (2) 14'x16' and (16) 9'x10' overhead doors.***

REMINDERS:

- SPS 361.36(1)(a) & (b) - The building shell shall be closed within two years of the initial approval date of this project. Also, this approval will expire three years after the date of initial approval of this project if the work covered by this approval is not completed and the building ready for occupancy within those three years.
- IBC 1004.5 - Submit determination of the number of occupants. The number of occupants is computed on either net or gross area as stated in IBC Table 1004.5. The gross area includes all corridors, rooms including toilet rooms and closets and stairways. The owner may submit a reasonable alternative determination of occupant load for consideration by the reviewer. ***Reminder to provide occupant load calculated per table when submitting interior alterations for tenant spaces.***
- IBC 1804.4 - Provide ground immediately adjacent to the foundation that is sloped away from the building at a minimum slope of 1 in 20 units horizontal for a minimum distance of 10 ft perpendicular to the face of the wall unless a listed exception is met.
- IBC 2204.1/SPS 362.2204(1) - The details of design, workmanship and technique for welding, inspection of welding, and qualifications of welding operators shall conform to the requirements of the specifications listed in IBC sections 2205, 2206, 2207, 2208, 2210 and 2211. Note: The rules pertaining to registration of structural welders are specified in ch. SPS 305. Provide a licensed structural welder (as issued by the WI Dept. of Safety & Professional Services) for areas of the building where structural welding will occur. The name of the worker and proof of licensure shall be made available to the Dept. representative upon request.

The submittal described above has been reviewed for conformance with applicable Wisconsin Administrative Codes and Wisconsin Statutes. The submittal has been CONDITIONALLY APPROVED. The owner, as defined in chapter 101.01(10), Wisconsin Statutes, is responsible for compliance with all code requirements. Only those object types listed above have been approved; other submittals such as plumbing and those listed above under REQUIRED SUBMITTAL(S), may also be required.

All permits required by the state or the local municipality shall be obtained prior to commencement of construction/installation/operation. You are responsible for complying with state and federal laws concerning construction near or on wetlands, lakes, and streams.

This plan has not been reviewed for compliance with fire code requirements, including those for fire lanes and fire protection water supply, so contact the local fire department for further information.

In granting this approval, the Division of Industry Services reserves the right to require changes or additions, should conditions arise making them necessary for code compliance. As per state stats 101.12(2), nothing in this review shall relieve the designer of the responsibility for designing a safe building, structure, or component. The Division does not take responsibility for the design or construction of the reviewed items.

Per s. SPS 361.40(4), projects for buildings of over 50,000 cubic feet total volume shall have supervising professionals who file compliance statements with this agency and the local code officials prior to occupancy of the project. Compliance statements shall be filed online at https://esla.wi.gov/PortalCommunityLogin.

Inquiries concerning this correspondence may be made to me at the contact information listed below, or at the address on this letterhead.

Sincerely,



Jennifer Zettler
Commercial Building Plan Reviewer
Division of Industry Services
Phone: 608-781-0524
Email: jennifer.zettler@wisconsin.gov

cc:
JOHN GIBBS, DIS INSPECTOR, (414) 852-3694, JOHN.GIBBS@WISCONSIN.GOV
JANE SNELL, MUNICIPAL CLERK, 2626941403, JSNELL@PLEASANTPRAIRIEWI.GOV
JASON LUEDERS, ZILBER PROPERTY GROUP